
Journal

2001 SBLR 163

Court

HIGH COURT OF APPEAL, FIJI ISLANDS

Date

2001-02-22

Appeal No.

Judge

THE RT. HON. SIR MAURICE CASEY, PRESIDING JUDGE THE HON. SIR IAN BARKER.
JUSTICE OF APPEAL THE HON. SIR MARI

Parties

CIVIL APPEAL NO. ABU0078 OF 2000SBETWEEN:THE REPUBLIC OF FIJI1.THE ATTORNEY
GENERAL OF FIJI2APPELLANTSANDCHANDRIKA PRASADRESPONDENTIN THE COURT
OF APPEAL FILL ISLANDS ON APPEAL FROM THE HIGH COURT FILL ISLANDSCIVIL
APPEAL NO ABU0078 OF 2000S (HIGH COURT CIVIL ACTION NO 21712000)BETWEENTHE
REPUBLIC OF FIJIFIRSTAPPELLANTTHE ATTORNEY GENERAL OF FIJIAND:CHANDRIKA
PRASADRESPONDENT

Lawyers

NICHOLAS BLAKE QC, ANTHONY MOLLOY QC, MICHAEL SCOTT, SAVENACA BANUVE
AND JAI UDIT FOR THE APPELLANTSGEOFFREY ROBERTSON QC, GEORGE WILLIAMS,
ANU PATEL AND NEEL SHIVAM FOR THE RESPONDENT.

Statutes

Judgment

JUDGMENT OF THE COURT¹⁵ In formulating our understanding of the common law of Fiji on the efficacy question, we are conscious that we are sitting as Judges of a Fiji Court. Consequently, statements by Judges which may have been appropriate for other countries where a 'revolution' may have come about in a variety of ways need not be adopted here. As we have emphasised, this case is unique in that it is the Interim Civilian Government itself that seeks a ruling on the legality of its regime, only some 7 months after it was established. Nor is Mr Prasad like the appellants in the Seychelles and Grenada cases who sought to manipulate the legal aftermath of a coup to avoid, in one case, payment of tax and, in the other, a trial for murder. By contrast, Mr Prasad is just an ordinary citizen seeking a return to normality.

We see the 'efficacy' test, in the context of the common law of Fiji, as follows: a) The burden of proof of efficacy lies on the de facto government seeking to establish that it is firmly in control of the country with the agreement (tacit or express) of the population as a whole.

b) Such proof must be to a high civil standard because of the importance and seriousness of the claim.

c) The overthrow of the Constitution must be successful in the sense that the de facto government is established administratively and there is no rival government.

d) In considering whether a rival government exists, the enquiry is not limited to a rival wishing to eliminate the de facto government by force of arms. It is relevant in this case that the elected government is willing to resume power, should the Constitution be affirmed.

e) The people must be proved to be behaving in conformity with the dictates of the de facto government. In this context, it is relevant to note that a de facto government (as occurred here) frequently reaffirms many of the laws of the previous constitutional government (e.g. criminal, commercial and family laws) so that the population would notice little difference in many aspects of daily life between the two regimes. It is usually electoral rights and personal freedoms that are targeted. As one of the deponents said, civil servants such as tax and land titles officials worked normally throughout the coup and its aftermath.

Their functions were established and needed no ministerial direction. We derive little proof of acquiescence from facts of that nature.

f) Such conformity and obedience to the new regime by the populace as can be proved by the de facto, government must stem from popular acceptance and support as distinct from tacit submission to coercion or fear of force.

g) The length of time in which the de facto government has been in control is relevant. Obviously, the longer the time, the greater the likelihood of acceptance.

h) Elections are powerful evidence of efficacy. It follows that a regime where the people have no elected representatives in government and no, right to vote is less likely to establish acquiescence i) Efficacy is to be assessed at the time of the hearing by the Court making the decision.

Evidence of Control and Acquiescence We now must determine whether, on the evidence presented before us, we can be satisfied that (a) the Interim Civilian Government is firmly

established and there is no rival government and (b) the people are behaving in conformity with the dictates of the Interim Civilian Government in such circumstances that their acquiescence can be inferred.

In relation to the first requirement of control, the violence and law lessness that ensued in the country following the events of May 19 took the country to the verge of anarchy. The Interim Military Government successfully undertook the task of restoring order. On 2 November, an attempt by elements of the army to take control was effectively put down. There is no evidence of an effective organised resistance or an attempt to displace the Interim Civilian Government by force. That does not mean that there is not a 'rival government'.

Affidavits filed by the former Prime Minister, Mahendra Chaudhry and former members of his Cabinet claim that the Peoples Coalition is ready and willing to resume office under the 1997 Constitution. Adi Kuini Speed in her affidavit said that the Coalition still has the support of least 44 out of the 71 seats in the House of Representatives and thus a comfortable majority, enough to form a Government. In addition to this, two proceedings have been instituted in the High Court by members of the Coalition challenging the abrogation of the 1997 Constitution.

The first was commenced on 8 August 2000 by Ratu Isireli Vuibau, the former Assistant Minister of Eijian Affairs, Mr Deo Narayan and Dr Gounder, both former members of Parliament who supported the People's Coalition Government. The defendants included Ratu Mara, the Commander, and Ratu Joset'a Iloilo, the Interim President. Dr Gounder deposed that the plaintiffs brought the action also on behalf of other duly elected members of Parliament, Ministers, and Assistant Ministers whose names would be filed in Court. The second, of 13 October 2000, was by Anand Kumar Singh, the former Attorney-General. The defendants included Alipate Qetaki, the Interim Attorney-General, the Commander,

and Ratu Josefa Iloilo. This is evidence that demonstrates that there is a rival government seeking through the Courts to assert its authority to govern.

So far as the second requirement, that of acquiescence, is concerned, counsel for the Interim Coalition Government relied on the continuing functioning of the administration of government throughout the attempted coup and its aftermath, for inferring acquiescence of the people in the Interim Civilian Government and the abrogation of the 1997 Constitution. We consider that this factor affords little proof of acquiescence.

In his affidavit of 14 September, the Commander said: " that the interim government headed by the Prime Minister Qarase has effective control and acceptance by the majority of Fiji's people and the administration has acquired legitimacy by such widespread acceptance by the people of Fiji. " We cannot properly act on a bare statement of belief by the Commander that there is widespread acceptance by the people, when there is a serious challenge to this claim in the evidence filed for Mr. Prasad. What is required is proof of facts from which the Court can infer widespread public support for the Interim Civilian Government and acquiescence in the purported abrogation of the 1997 Constitution. The Interim Civilian Government adduced no such evidence. Its evidence came almost exclusively from persons holding official positions.

Five volumes of affidavits were filed on behalf of Mr Prasad to prove that people in Fiji by and large do not support the Interim Civilian Government. We do not intend to canvass this material in any great detail. It is summarised in Appendix A.

This evidence suggests that a significant proportion of the people of Fiji believe that the 1997 Constitution embodies and protects the ideals and aspirations of the different ethnic groups in

Fiji. The material also indicates a widespread belief that there was no proper justification for its abrogation.

The Interim Civilian Government faced an almost impossible task in demonstrating real acquiescence on the part of the people when the evidence filed on behalf of Mr Prasad which is summarised in Appendix B, shows that emergency legislation remains in force, and has been used to inhibit public expression of dissent. However, it should be noted that the press appears to be free to publish views opposing the Interim Civilian Government.

A Human Rights delegation sponsored by the Commonwealth Human Rights Initiative visited Fiji between 27 August and 5 September 2000 and consulted with more than 25 civil society organisations and community groups in Suva, Nadi and Lautoka, regional areas and Vanua Levu. They concluded at page 7 of their report: "After consulting civil society organisations., in particular civil society groups who represented sections of the indigenous Fijian community, it became clear that there is little public support for the military backed interim administration." The Courts have also recognised the continued existence of the 1997 Constitution. Between 23 August when Gate J heard the case and 15 November 2000 when he delivered his decision, four judgments were given by Judges of the High Court which proceeded on the basis that the 1997 Constitution remained in force (see *Prakash v Native Land Trust Board*, *BR. Kwon v Suva City Council*, *Singh v The State* and *Doyle v Doyle*) Conclusions In the light of the large volume of additional material put before the Court, this appeal became a rehearing, to be decided on the current situation. The burden of proving that the 1997 Constitution had been superseded lay on the Interim Civilian Government, and the standard of proof is a high one, having regard to the great public importance of the issues involved. Mr Blake accepted that he had to satisfy the Court that the citizens of Fiji truly acquiesce in the new constitutional arrangements and the Interim Civilian Government, in order to justify the conclusion that it is now the legally valid government. The affidavits tiled on its behalf were directed at showing that it is in full control and that all branches of government are working normally. They make no reference directly to acquiescence, and it was left it to the Court to decide what conclusions should be drawn from them on that subject.

Undoubtedly most people will have noticed little difference between this and the former constitutional regime in many aspects of their daily lives which they carry on as before, but such passive compliance is hardly a persuasive indication of true acquiescence in a government which has been in power for only about seven months and severely restricts public protest. The affidavits produced on behalf of Mr Prasad and summarised in the preceding section demonstrate that substantial sections of the community do not accept the legitimacy of the present government or acquiesce in it. It should also be remembered that the elected government has said it will await the outcome of this appeal before taking any further steps.

In the absence of any convincing evidence of real acquiescence, we must hold that the Interim Civilian Government has not discharged the burden of proving acquiescence and has accordingly failed to establish that it is the legal government of Fiji. The purported abrogation of the 1997 Constitution has not been justified and it remains in place. We make declarations to this effect and of the current status of Parliament and the President. But we are not prepared to adopt all the declarations made by Gates J some are inappropriate while others have been overtaken by events.

Legality of Intervening Acts Our conclusion that the 1997 Constitution remained in force throughout raises the question of the extent to which the decrees, executive acts and decisions of the administrations since 19 May 2000 are to be recognised as valid. This point was discussed in the Privy Council in *Madzimbamuto v Lardner-Burke* (1969) 1 AC 645, but the majority found it

unnecessary to decide the question. At p726 Lord Reid referred to decisions of the Supreme Court of the United States dealing with the situation after the American Civil War. in the former Confederate States and he cited *Horn v Lockhart* (1873) 17 Wallace 570. 580 (84 US), where the Court said: "We admit that the acts of the several States in their individual capacities, and of their different departments of government, executive, judicial, and legislative, during the war, so far as they did not impair or tend to impair the supremacy of the national authority, or the just rights of citizens under the Constitution,' are, in general, to be treated as valid and binding. The existence of a state of insurrection and war did not loosen the bonds of society, or do away with civil government, or the regular administration of the laws. Order was to be preserved, police regulations maintained, crime prosecuted, property protected, contracts enforced, marriages celebrated, estates settled, and the transfer and descent of property regulated precisely as in time of peace. No one that we are aware of seriously questions the validity of judicial or legislative acts in the insurrectionary states touching these and kindred subjects, where they were not hostile in their purpose or mode of enforcement to the authority of the National Government, and did not impair the rights of citizens under the Constitution. " In *Maciaimbarnuto* Lord Pearce said at p732: "I accept the existence of the principle that acts done by those actually in control without lawful validity may be recognised as valid or acted upon by the courts, with certain limitations namely (a) so far as they are directed to and reasonably required for ordinary orderly running of the State, and (b) so far as they do not impair the rights of citizens under the lawful.... Constitution, and (c) so far as they are not intended to and do not in fact directly help the usurpation... " We respectfully adopt this statement as an expression of the law applicable to Fiji.

Result 1. The Court makes the following declarations in lieu of those made in the High Court: (i) The 1997 Constitution remains the supreme law of the Republic of The Fiji Islands and has not been abrogated.

(ii) Parliament has not been dissolved. It was prorogued on 27 May 2000 for six months.

(iii) The office of the President under the 1997 Constitution became vacant when the resignation of Ratu Sir Kamisese Mara took effect on 15 December 2000. In accordance with Section 88 of that Constitution, the Vice-President may perform the functions of the President until 15 March 2001 unless a President is sooner appointed under Section 90.

The appeal is otherwise dismissed.

The respondent will have costs of fifty thousand dollars (\$50,000) against the appellants to cover the appeal and interlocutory applications. In addition the respondent will have the cost of printing and copying the affidavits filed on his behalf, and other reasonable disbursements. The appellants will also pay the reasonable accommodation and travel expenses of respondent's counsel (limited to business class airfares), the amounts of these expenses and disbursements to be fixed by the Registrar if the parties cannot agree.

L*J Sir Maurice Casey Presiding Judge Sir Ian Barker Justice of Appeal Sir Mari Kapi Justice of Appeal Justice Cordon Ward Justice of Appeal Justice R. Handley Justice of Appeal Solicitors: Office of the Attorney General. Suva for the Appellants Messrs S.B Patel & Co.. Lautoka for the Respondent APPENDIX A ORGANISATIONS WHOSE OFFICERS GAVE AFFIDAVITS (1) Fiji Tiaders Union Congress representing 37 affiliated trade unions in Fiji, (affidavit of Felix Anthony) (2) Fiji Public Service Association representing all civil servants and all workers in statutory authorities other than teachers and nurses, (affidavit of Rajeshwar Singh) (3) Interfaith Search -a group that has been seeking since the 1987 coups to build understanding among members of different religious groups, (affidavit of Tessa Mackenzie) (4) Shree Sanatan Dharam Pratinidhi

Sabha - a religious group which represents a great majority of Hindu Indo-Fijians with a total membership of 200,000. (affidavit of Harish Sharma) (5) Fiji Young Lawyers Association - a lawyers professional group that upholds human rights and the rule of law under the 1997 Constitution, (affidavit of Prem Lata Narayan) (6) Then India Sanmarga Ikya Sangam, a socio - cultural religious and educational society with almost 100,000 members, (affidavit of Dorsami Naidu) (7) Fiji Human Rights Group, a non-governmental organisation for promoting human rights, (affidavit of Roy Krishna) (8) Fiji Law Society (affidavit of Giyannendra Prasad a member of its Council, and Deputy Speaker in the Parliament following the 1999 election) (9) Fiji Women's Crisis Centre (affidavit of Edwina Kotoisuva) (10) Fiji First Movement (affidavit of Millis Beddoes) (11) NGO Coalition of Human Rights which represents nongovernmental organisations (affidavit of Akuila Vabaki) (12) Citizens Constitutional Forum formed in 1993 to bring together people from all sectors of society to find solutions to Fiji's political and ethnic problems (affidavits of Akuila Yabaki and Jone Da ku vula) (13) Fiji Women's Rights Movement, a multi-ethnic non-governmental organisation, dedicated to promoting democracy, good governance and human rights, (affidavit of Cina Houn Lee).

APPENDIX B EVIDENCE OF EFFECT OF EMERGENCY REGULATIONS (1) Affidavit of Tupeni Baba (912101) Para 15 Large meetings have been made impossible because of the current emergency regulations.

(2) Affidavit of Felix Anthony (812101) Para 19 There are no public protests because the Fiji Trade Union Congress and its members are constrained by the internal security decree which bans public gatherings and protests.

(3) Affidavit of Edwina Kotoisuva (1012101) Para 12 The Fiji Women's Crisis Centre was granted a permit to hold a peace rally on November 26 2000. The rally was organised to provide an opportunity to discuss peace and non-violence issues in our communities and promote and encourage the same. Despite being publicised as a non-political rally, the permit was revoked by the Interim Minister for Home Affairs, Ratu Talemo, less than 48 hours before the rally was to be held.

Para 30 The Interim Administration has refused to allow any means by which civil society and the general public can meet to demonstrate their opposition to this administration.

Annexure J The Public Service Commission chose to view the Blue Day Campaign (the public were encouraged to wear blue to show their support for a return to parliamentary democracy) as deliberate opposition against the Interim Administration and issued a statement that all civil servants were not allowed to show their support for the campaign by wearing blue. .

(4) Affidavit of Gina Houn Lee (1112101) Also refers to the withdrawal of the permit for the peace rally on 26 November 2000.

(5) Affidavit of Akuila Yabaki (1212101) Also refers to the withdrawal of the permit for the peace rally on 26 November 2000.

(6) Affidavit of Harish Sharma (10/2101) Para 19 The Emergency Decree restricts our ability to peacefully demonstrate our opposition and non-acceptance to the Interim Administration by the holding of public meetings, marches or protest in any other manner.' (7) Affidavit of Prem Narayan (812101) Para 5 The Fiji Young Lawyers Association has not been able to conduct a regular meeting because the Decree allows the District Officer or a police officer or a member of the armed forces to disperse any meeting, procession or assembly. Despite three attempts to call meetings 1 have not been able to secure a quorum as the members fear for their safety.

(8) Affidavit of Millis Beddoes (1112101) Para 3 1 was questioned for two and a half hours in custody concerning my request to citizens of Fiji to stay at home on 19th February 2001 so as to register the non-acceptance of the Interim Administration, I am now awaiting criminal charges to be laid under Sections 15,16 and 17 of the Public Order Act., HIGH COURT OF BALOCHISTAN CASES REPORTED r Abdullah v. The State.

K Abdul Bashir & others v. Government of Balochistan & others.

r Ahmed Khan v. Secretary, Health Department Government of

131 79

Balochistan.

> Bashiran & others v. Divisional Superintendent & others.

y Dost Mohammad Achakzai v. The State.

> Dr Mohammad Noor Baloch v. The Secretary Health Department

Government of Balochistan.

r Dr. Mrs. Bushra Magsi v. District Magistrate/Deputy Commissioner.

Sibi.123 91 10

53 214 r- Duran Bibi v. Jehanzaib & others r

Farzana Sarvvar d/o. Ghulam Sarwar v. The State.

203 66

r Habib Arkady Ltd. v. Deputy Collector, Sales Tax, Hub,

Collectorate of Customs Sales Tax & Central Excise Quetta.

Jagin v. The State.

y Haji Gul v. Mst. Rehana Mushtaq.

r Haji Sabir v. The State.

267 257 Sibi.188 173 > Jagin & others v. The State.

Sibi.113 r Karam Khan v. Abdul Baqi.

39 y Khalid Hassan v. The Secretaiy to the Govt, of Balochistan & others. 182 155 r Kishwar Rehman v. Government of Balochistan & others.

> Lai Bibi v. Taj Mohammad.

illegal. 186 Certificate to be appended should be in the handwriting of judge. Sibi. 121
 Citizenship Act, 1951 - Domicile Certificate issued under the Citizenship Act, 1951 and the one
 issued from a particular District - Distinction. 282 Civil Court to decide a matter according to law.
 255 > > Code of Civil Procedure (Act V of 1908) - Sec. 115 - revisional jurisdiction. 266 Code of
 Criminal Procedure - Section 342 - Failure to append certificate - Omission to put incriminating
 pieces of prosecution evidence to the accused - and failure to give certificate by the judge as
 required by law. - Effect. 181 Code of Criminal Procedure - Section 161. Sibi. 196 Code of
 Criminal Procedure (Act V of 1898) - Statement under Section 342. Sibi. 230 Code of Criminal
 Procedure (Act. V of 1898) - Sec 491 and jurisdiction under Guardian and Wards Act.

Code of Criminal Procedure - Section 417 - acquittal appeal. Code of Criminal Procedure (V of
 1894) section 103.

69 21 1,212 15 Sibi.119,120 24,26 15 274 62 61,63 220 57 Sibi.126 251,252 15,16 Sibi.119 176
 Sibi.195 196 147 Sibi.238 147 221 Sibi.231,232 Sibi,118 90 111 31 65 Code of Criminal
 Procedure (Act V of 1898) - Sec.342 Cr.P.C. Confession and Extra Judicial confession.

Constitution of Pakistan 1973 - Articles 77 & 199.

Constitution of Pakistan - Article 199 and Sales Tax Circular No.7 of 1981. .

Constitution of Pakistan Art. 199 - Alternate remedy - writ jurisdiction - Controversial questions.

Constitution of Pakistan, Art. 199 - withholding payments to contractors.

Constitution of Pakistan, 1973 - Article 199 -Types of citizens residing in Balochistan.

Constitution of Pakistan, Art. 199 - Writ of Mandamus. Constitution of Pakistan - Art. 199 and the
 bar contained in Art. 212(3) - relief sought beyond powers of Service Tribunal - petition to High
 Court competent.

Contract Act, - Section 171 - Difference between banker's right of lien and set off and the
 circumstances in which bank can claim such right and against whom.

Control of Narcotics Substance Act (XXV of 1997), sections 25 and 29.

Conviction should be based on valid evidence and not on surmises or conjectures or moral
 conviction.

Criminal trial - findings and sentence based on surmises and conjectures - conviction set aside.

Criminal trial - Motive.

Delay in sending crime weapons to the Expert - of no consequence.

Failure of accused to appear in High Court and before Judicial Magistrate in consequences of
 non bailable warrant - not entitled to discretionary relief.

Family Honour (Ghairat) - Not a mitigating circumstance.

First Information Report already registered - registration of second FIR on same allegation "not
 correct".

Grant of local certificate declined in violation of principles of natural justice - Petition allowed.

Honour killing.

Identification of accused in dark night.

Illegal orders of superior - not to be followed.

Interpretation of Statutes.

Katchi Abadi and/or encroachment/unauthorized occupants - status.

Land Revenue Act 1967 (W.P. Act XVII of 1967).

Litigation and public interest.

> Limitation Act. (Act No IX of 1908) 31 > Local Certificate and Domicile Certificate issuance and cancellation of. 162 > Matters at interlocutory stage should not be brought to the High Court. 274,275 > No writ can be issued in favour of trespasser or against law. 108 > Pakistan Citizenship Act r/w rule-23. 161 > Pakistan Citizenship Act 1951 - issuance of domicile certificate. 161 > Pakistan Penal Code (Act XLV of 1860) Section 302(a) and 304 PPC - Qatle-i-Amd. Sibi.234 > Policy or direction for guidance of officers without any statutory backing - no vested right can be claimed on such policy, direction or instruction. 101 > Principles of Code of Criminal Procedure - Applicability. Sibi.201,202 > Process of making appointments should be transparent. 90 > Question of residence in a particular district. 162 > Reserved seats - object of. 165 > Right of self defence - modification in the contemn quantum of sentence-Circumstances. 39 > Sentence - Modification u/s 561 -A Cr.P.C. Sibi.202 > Suppression of Terrorist Activities Act, 1975 - Sec. 5-A 152 > Suppression of Terrorist Activities (Special Court) Act, 1975. Sibi.199,201 > Trade Registration Ordinance, 1961. 77 > Territorial Jurisdiction of High Court. 5 > Trespasser - cannot be allowed equitable relief. III > Unauthorized Occupants-Issuance of Writ. 108 > Writ - cannot be issued in favour of trespasser or against law. 108 > Writ Jurisdiction - Article 199. 147 DIGEST OF CASES Acquisition of a domicile of choice - requirements:- For the acquisition of a domicile of choice, there must be a combination of residence and intention of permanent or indefinite residence before the change could become effective. Quetta. - 165/G Admissibility of Daily Allowance to a Government Servant during training within the country - Petitioner, a medical officer was nominated for MCPS (Anesthesia) course for a period of nine months. He submitted his TA/DA bill alongwith hotel charges which was rejected by the Project Director on the plea as he was only entitled to house rent allowance as per condition no. 4 of his nomination. Relying on the instructions issued on the subject his claim was declined. He prayed for direction to the respondent to accept his bills and payments be made accordingly. It was held as per terms and condition of his nomination/deputation order petitioner was entitled to house rent allowance as admissible under the rules subject to the production of certificate from the Medical Superintendent of the Hospital, to the effect that the officer had not been provided with any hostel/government residential accommodation. Accordingly even if the petitioner was not provided any hostel/government residential accommodation, he was only entitled to house rent allowance, but by any stretch of imagination he could claim daily allowance and hotel charges. Further though clause-3 speak about entitlement of petitioner to claim TA/DA as permissible under the rules and the circular titled as "Admissibility of daily allowance to the Government servant during training period within the contrary," was relevant, as his stay was for more than two years, therefore, he was governed by special clause-4 of his nomination order.

And clause 3 of his nomination order was relevant for the purpose of joining course at Karachi from his place of posting and back but by no stretch of imagination, petitioner under the terms of his nomination could claim daily allowance and hotel bill for good about more than two years.

Quetta. - 56,57/A Audi Alteram Partem:- There is judicial consensus amongst the superior courts that the maxim audi alteram partem is applicable to judicial as well as quasi judicial and non-judicial proceedings.

Quetta. - 187/B Automatic issuance of local certificate to Petitioner, whose husband was in possession of local certificate:- Held Petitioner or her husband had not placed before the Deputy Commissioner/Committee any material to establish that he/she is a genuine resident of the area except local certificate. It may be because of impression of petitioner that she is automatically entitled for grant of same on the basis of her husband's local certificate but even in such cases, laid down procedure has to be followed.

Quetta. - 221/B Balochistan Board of Revenue Act Sec. 8(1) Review - power of - can be exercised when there is mistake or error of law or fact apparent on the record having material bearing on the final result of the case, then same could be interfered in review jurisdiction. Member Board of Revenue was justified in over ruling the plea of limitation while considering the review application.

The impugned order being just and proper was not set aside in constitutional jurisdiction.

Quetta.-31/B Balochistan Board of Revenue Act (Act XVII of 1887):- Revision/review application- Limitation - time spent in obtaining certified copy for filing revision application to be excluded.

Quetta.-30,33/A Balochistan Civil Servant Appeal (Rules) 1983 Departmental appeal not routed through the immediate head - Effect: The provision contained in sub-rule (3) of rule 5 of the Appeal Rule 1983 is directory and not mandatory Non compliance of this provisions would not effect the final order which otherwise was not unlawfully passed. Such appellate order cannot be ignored. It was further held; - the order of appellate authority is to be given effect under sub-rule (3) of Rule 6 above.

Sibi. - 130/B Balochistan Development Authority (E & D) Rules, 1987 - Departmental action no bar to Prosecution in Court:- Departmental action resulting in even imposition of a major penalty against an employee is no bar to proceed and prosecute him in the court of law for committing fraud and corruption -Further held - matter rightly referred to the Authorities concerned for trial of the Petitioner by the competent court of law. Quetta. - 147/A Balochistan Excise and Taxation Department (Grade-1 to 15) Service Rules 1982:- Respondent No.4 to 35 (in C.P. No.950/99) were appointed Inspectors but their appointments were challenged as unconstitutional, arbitrary, malafide and contrary to the relevant rule. During pendency of the petitions the Director Excise and Taxation Quetta issued show cause notices to the Respondent-Inspectors as their appointments were irregular. They challenged the show cause notices in the constitutional jurisdiction - - Contention that the petitioner had an alternate remedy through the Services Tribunal was repelled having no merit. It was further held that the direct appointments were made in excess of the quota and thus those who were already in service were deprived of their rights which caused prejudice to the petitioners. The appointments of the respondents were declared illegal and excess of authority without relaxation and/or availability of vacancies.

Quetta. - 84,88/A Baluchistan Minor Minerals Concession Rules, 2000. Cancellation of contract without notice:- Held, illegal being in violation of the Principle of Nature Justice. Quetta. - 186/A Bolan Medical College - Admission:- Admission to the Bolan Medical College is open to genuine, local and domiciled candidate of the Balochistan Province. - The Selection Committee is competent to see and enquire as to whether a candidate actually belongs to the district of which

he has produced the Local/Domicile Certificate. Quetta. - 164/F Bolan Medical College, Quetta - Admission in 1st year MBBS - Permanent resident:- Just by owning some immovable property in certain District does not make the candidate permanent resident of said district it is always the status of the candidate, which is to be determined to see whether he belongs to a particular district or he has intention to settle down permanently in that district. As contemplated in paragraph 3.1 of the Prospectus. Quetta. - 281/A Bolan Medical College, Quetta - Admission in the first year MBBS Class:- The petitioner had applied for admission the first year MBBS in class for the academic session 1998-99 against the reserve seats of Doctor's Children but could not succeed. In the petition she raised objection against the candidature of respondent No.4 on the ground that her father was in Government service therefore, she had been wrongly admitted in the medical college.

This objection was overruled and it was held, "Since at the time of granting admission to respondent No.4, it was proved that her father is a full Time Medical Practitioner and is not in any Government service, thus, she has been rightly considered for admission in Category 'C'". Quetta. - 74/A Balochistan Urban Rent Restriction Ordinance VI of 1959 - Sec. 15 - personal requirement:- Contention of the appellant / tenant that the ejectment application was not maintainable as there is no provision in the Ordinance to seek ejectment for the need of the husband - repelled - It was held, personal requirement is not only limited to the landlord or his children but it also includes the dependants of the landlady/landlord: now it is well-settled that the landlady for filing Eviction application on the ground that the premises in dispute was required for the use and occupation of her husband as he was doing business in rented tenements.

Having proved that the premises in question were required by her husband in reasonable and good faith as he was doing business in a rented tenement therefore in the absence of any misreading or misapprehension of evidence the ejectment order was upheld.

Quetta. - 260,261/A Capital Punishment - Absence of motive:- It is well settled that in absence of motive capital sentence can not be awarded where prosecution case is based on circumstantial evidence. Death sentence altered to life imprisonment. Quetta. -26/E Certificate to be appended should be in the handwriting of judge:- The trial court failed to give requisite certificate under his hand. -----No doubt certificate was appended but the same was in the handwriting of some one else and could not be treated as certificate under the hand of judge. It is well settled that when the law provides the procedure for doing a thing in particular manner then that should be done in the prescribed manner and in no other manner or should not be done at all. Sibi. - 121/D Citizenship Act, 1951 - Domicile Certificate issued under the Citizenship Act, 1951 and the one issued from a particular District - Distinction:- Domicile Certificate issued under the Citizenship Act, 1951 is not at par with the one issued from a particular District. The former is issued under a specific law regarding intention of oath for permanently settling in Pakistan by the Holder and by abandoning the domicile of origin from another country. This latter contemplates permanent residence in a particular District. Such like Certificates are not issued under any statutory law, but are issued by the District Magistrate, in exercise of Administrative Authority. The purpose of issuance of such Local/Domicile Certificates is to get admission in any of the Educational Institution. The issuance of such Certificate vests right on the holder of such Certificate, to apply against the reserved seats of the District, from where the said certificate is to compensate the students, who belong to under-developed areas, to bring them at par with the students of developed areas and in case of cancellation of the Local/Domicile Certificate, would not amount to cancellation of the Citizenship of the Country. Quetta. - 282/B Civil Court to decide a matter according to law:- The approach of learned trial Court was totally illegal as Civil Court was under a legal obligation to decide the validity of action of the respondent with reference to law and not to base its decision, on the opinion expressed in the letter by some official of State Bank, particularly when no law was referred and more particularly when the appellants have specifically

alleged that Manager of State Bank of Pakistan and Manager of Bolan Bank were related inter-se. Quetta. - 255/B Code of Civil Procedure (Act V of 1908) - Sec. 115 - revisional jurisdiction:- Finding of the appellant Court being erroneous and legally not sustainable was set aside - It was held. " It is a well settled principle of law. that if the Appellate Court has reversed the well-reasoned findings of trial court, without giving any cogent and substantial reasons, then this Court in its revisional jurisdiction would be well within its powers to set aside such Judgment based on surmises and conjectures, and restore well- reasoned Judgment of Trial Court." Quetta. - 266/A Code of Criminal Procedure (Act V of 1898) - Section 161:- Statement of prosecution witness not recorded u/s 161 Cr.P.C. during investigation by the I.O., "his statement could not be relied upon for want of corroboration with 161 Cr.P.C. statement. Sibi. - 196/B Code of Criminal Procedure (Act V of 1898) - Section 342 - Omission to put incriminating piece of prosecution evidence to the accused - and failure to give certificate by the judge as required by law:- Held, questions to be put to the accused should be definite and specific. The trial court is bound to ask such questions from an accused under Section 342 Cr.P.C. which related to root of prosecution evidence. Statements under Section 342 Cr.P.C. of the appellants on the face of it show that the same have not been recorded in-accordance with The trial court also failed to give requisite certificates but the same was in the handwriting of some one else held - not to be treated as certificate under the hand of judge. It is well settled that when the law provides procedure for doing a thing in a particular manner then that should be done in the prescribed manner and in no other manner or should not be done at all.

Quetta. - 181/B Code of Criminal Procedure (Act V of 1898) - Sections 561-A, 423 & 439 and Section 7-A of Suppression of Terrorist Activities (Special Court) Act, 1975:- Contention of the AAG that High Court has got powers u/s 439 Cr.P.C. to enhance the sentence even in exercise of jurisdiction u/s 561 Cr.P.C.-----repelled. It was held, there is no scope of enhancement of the sentence u/s 7 of the Act, "High Court ceases the jurisdiction u/s 439 Cr.P.C. to revise the judgment passed by a Special Courts working under Suppression of Terrorist Activities Act of 1975, in order to modify or enhance the conviction and sentence passed by said Court. Sibi. - 199,201/D Code of Criminal Procedure (Act V of 1898) - Statement under Section 342:- Statement of the accused to be accepted in totality and without scrutiny. Sibi. - 230/A Code of Criminal Procedure (Act V of 1898) Sec. 154:- FIR having already been registered, registration of second FIR on the same allegation, "not correct". Quetta. - 147/B Code of Criminal Procedure (Act V of 1898) - Qatl-I-amd - Section 300 PPC and Qatl-bis-Sabab Section 321 PPC - Distinction highlighted:- "Hadood, Qisas, Dyat" by Dr. Tanzil-ur-Rehman; ref.

Quetta. - 138,139/B Code of Criminal Procedure (V of 1898)- section 103:- Section 103-Not applicable to narcotic cases. Quetta. 15-/A Code of Criminal Procedure (Act V of 1898) - Sec. 516-A to 525 Cr.P.C - Open transfer letter is not a valid document of title:- Section 516-A Cr.P.C enables a Magistrate to provide the interim custody of property pending the conclusion of the trial. No illegality has been pointed out and no justification has been made out for interference. Even otherwise open transfer letter is not a valid document of title. Petition for quashment dismissed. Quetta. - 171,172/A Code of Criminal Procedure (Act of V 1898) - Sec. 342 Cr.P.C:- The trial court was bound to ask such questions from an accused under Section 342 Cr.P.C which related to the root of prosecution evidence.

Sibi.-119,120/C Code of Criminal Procedure (Act. V of 1898) - Sec. 491 and jurisdiction under the Guardian and Wards Act (VIII of 1890) - On the question whether the exercise of jurisdiction under section 491 Cr.P.C by the High Court and by the Family Court under the Guardian and Wards Act are over-lapping and one destroys the other, it was held.

"the two matters one dealt with under section 491 Cr.P.C and the other under the Guardian and Wards Act are entirely different and there is no question of one excluding the other, the one over

lapping the other or the one destroying the other. And that there is no repugnancy between the said two provisions. Further that provision of section 491 Cr.P.C are more appropriate, efficacious and speedy and if the High Court comes to the conclusion that some one is illegally or improperly detained in public or private custody, the court can restore the custody of the minor, to the person with whom such custody vested prior to the improper deprivation of the custody. But the absolute authority for determination of final custody of the minor vest in a court of Guardian and Wards Act which will finally decide the case of minor, although High Court enjoys parental jurisdiction in respect of the minors and keeps into consideration the relevant law governing the minors. The language of section 491 Cr.P.C shows that the High Court can exercise the jurisdiction for issuing directions in the nature of Habeas Corpus only when a person is illegally or improperly detained in public or private custody within the limits of such High Court. Further that facts of individual cases may be such and where the cover of proceedings of one sort is taken for advancing the substance of the proceedings and thereafter the proceedings are to be diverted to the appropriate channel be it of section 491, Code of Criminal Procedure or one under Guardians and Wards Act" Quetta. - 69/A Code of Criminal Procedure 1898 (Sec. 164 Cr. P.C):- The delay in recording confessional statement by itself is not fatal to the case of prosecution in absence of strong, solid and cogent reason for involving the accused.

The appellant was charged for committing murder of a child of 10 years allegedly for ransom. During investigation the appellant confessed that he killed the deceased and the dead body & pistol were recovered at his pointation. Blood stained earth was also obtained from his room where the incident took place. This confessional statement was recorded during investigation u/s 164 Cr.P.C.

The learned Session Judge/STA framed the charge against the appellant U/S 302/365 PPC. to which the appellant pleaded guilty.

Notice was. however, issued to him u/s 243 Cr. P.C. After reply to the notice the case was transferred to Special Judge STA/AdditioRal Session Judge where the trial commenced. The appellant was sentenced to death U/S 302(B) and 365(A).

Quetta.-24/A Code of Criminal Procedure (Act V of 1898) - Section 417 - acquittal appeal:- Trial Court having mis-read evidence particularly the statement of the complainant, the mother of the deceased; her statement finding corroboration from the medical evidence as well as other pieces of circumstantial evidence therefore, following the principles laid down in Ghulam Sikandar v. Mumraz Kahn (PLD 1985 SC 11) it was held, that the trial Court had discarded the statement of the complainant on a wrong assumption of law. The prosecution having proved its case beyond any shadow of doubt the accused was convicted. Although he had denied his relationship with the deceased yet there was un-impeachable evidence to the effect that the deceased was his wife and out of w-ed lock a child was also born. Therefore he was sentenced to suffer R.I for fourteen years under section 308 PPC.

Quetta. - 211,212/A Confessional Statement - Such statement need not contain the details of recoveries in order to become voluntary. Quetta.- 24/AA Constitution of Pakistan - Article 199 and Sales Tax Circular No.7 of 1981:- Efficacious and alternative remedy available under the relevant law ought to have been exhausted before invoking the constitutional jurisdiction. Show cause notice by the Deputy Collector in view of the provision contained in Sales Tax Circular No.7 of 1981 held legal.

Quetta. - 274/A Constitution of Pakistan (1973) - Article 199 - Relief discretionary:- Petitioner did not appear before the High Court and also failed to surrender in consequence of non bailable warrants issued against him by the Judicial Magistrate Quetta - held, "not entitled to any

discretionary relief in writ jurisdiction". Quetta. - 147/C Constitution of Pakistan - Article 199 and the bar contained in Article 212(3) of the Constitution:- The petitioner was placed under suspension and ultimately his services were terminated. He preferred departmental appeal to Respondent No.2 which was accepted on the ground that the services of the petitioner were illegally terminated. Thereafter the petitioner approached the respondent No.3 to resume duty but he was not allowed to do so. The respondent No.3 went a step further and advertised the post held by the petitioner. This action was challenged by the petitioner before the High Court. The respondent No.3 raised objection based on the bar contained in Art. 212 (3) of the Constitution that the petition was not maintainable. This objection was repelled and it was held where relief sought is beyond powers of Service Tribunal, petition to High Court is competent....."it may be explained that settled law is that in order to create an ouster of jurisdiction of all other Courts and Tribunal under Article 212 of the Constitution, it must be shown that the matter is agitated by a Civil Servant as defined under the Act: it has arisen from a final order of a department/authority, whether original or appellate, it concerns the terms and conditions of the aggrieved Civil Servant and that it is not covered by the exceptions mentioned in proviso (b) (i) and (ii) of section-4 of the Services Tribunal, Act. If any of the conditions mentioned above are non-existent in a case then the bar contained in Article 212 of the Constitution will not be operative." Sibi. - 126/A Constitution of Pakistan - Article 199 - Exercise of Jurisdiction:- Constitutional jurisdiction can be exercised in favour of persons, who comes to Court with clean hands and abide by their commitment or Court directions. The petitioners did invoke the jurisdiction of the High Court in the last round of litigation, got some time to enjoy winter season and holy month of RAMZAN but then did not abide by their commitment/undertaking. So the petition is also liable to be dismissed on this ground - Object of Article-199 is to protect legal, inalienable and fundamental rights of a person, and therefore, the Court is obliged to perform the above obligation, on the one hand, but on the other hand, the High Court has to conform with limitations provided under Article-199 and other related Articles. Quetta. - 108/B Constitution of Pakistan - Article.199 - Attempt to get unauthorized occupation regularized:- Petitioners being trespassers/land grabbers occupied Railway land and apprehending ejection, invoked constitutional jurisdiction challenging the action of the respondents, inter alia, on the ground that as per policy of the Ministry of Railways Government of Pakistan their occupation was liable to be regularized. - Contention repelled and it was held, "the encroachers are neither clustered kutchi abadi nor any NOC was ever issued in their favour. Quetta. - 101/A Constitution of Pakistan - Art. 199 - Writ of Mandamus - A mandamus against the Government can be issued only in case of clear violation of something having "force of law". Quetta. - 57/B Constitution of Pakistan - Article.199 - Policy or direction given for guidance to the officers without any statutory backing - Effect - When a policy or direction is given for guidance to the officers of a department without any statutory backing, no claim or vested right can be based on such policy or direction or instructions, particularly when the case of respondents is that petitioners do not belong to that category of unauthorized occupants to whom property can be offered for sale if a policy has been made, in the peculiar circumstances of the case without any pick and choose, no exception can be taken.

Quetta. - 101/A Constitution of Pakistan, 1973:- Article 199 - Territorial jurisdiction of High Court to entertain petition. The petitioner has to show that he has been affected by impugned Act within the territorial jurisdiction of the High Court.

The petitioner was one of the directors of a limited company which availed loan from a bank. He was also alleged to be one of the guarantors. His name was put on Exit Control List because he was reported as a defaulter. He filed a Constitutional Petition in the Lahore High Court which allowed him to go abroad on his furnishing security; that he would return within a period of one month. The petitioner's name however, continued to be on the E.C.L. and he filed petition in the High Court of Balochistan, challenging inclusion of his name in the E.C.L. It was contended on

behalf of the respondents that the petition was not competent for want of territorial jurisdiction of that court.

Held.

The words "within the territorial Jurisdiction of the Court" have obviously been incorporated with the intention of confining the scope of exercise of jurisdiction by the High Court. There should be justified basis to approach a particular High Court otherwise everybody would be free to file a Constitutional Petition as per his whim, wish or convenience. The intention of Constitution's maker can also be gathered from the use of words "any act done or proceedings taken". Accordingly, it is held that though functionaries acting on behalf of Federal Government can be sued before any of the High Courts yet petitioner has to show some real basis, which may include that he has been affected by such acts, within the territorial jurisdiction of a High Court.

Additionally, more than one High Court may have concurrent jurisdiction, in the circumstances of a case." Quetta.-5/A Constitution of Pakistan, 1973 - Article 199 -Types of citizens residing in Balochistan:- There are two types of citizens residing in Balochistan. A - 'local' - generally it is believed that a local is a person who belongs to one of the indigenous/recognized tribes of the Province and such recognized tribes have been duly notified by the Government. The others are commonly known as 'settlers' and a settler is a person who does not belong to aforementioned recognized tribe but otherwise permanently residing in any part of Balochistan. There is no discrimination between a local and settler and if for such reason that whenever a seat/vacancy is reserved for a district, the requirement is to produce a local/domicile certificate issued by respective Deputy Commissioner/District Magistrate.

Quetta. - 220/A Constitution of the Islamic Republic of Pakistan - Art 199 - Release of payment for work done in accordance with the terms of the contract - The petitioners had completed certain works but the payments were withheld allegedly, "without lawful authority and reasonable justification." On behalf of the respondent it was contended that they had no objection to make payments but the bills submitted by the petitioners were not correct as some extra amount had been included in violation of the agreed rates.

Apprehension was also expressed that if the payment is released the petitioners may not complete the work. On the question as to whether payment can be withheld for the works which had already been completed it was held as follows: "I. The agreed amount regarding which there is no dispute at the moment be paid to the petitioner.

2. For disputed amount the mechanism provided in the contract agreement be followed.
3. The work shall not be discontinued/suspended without following the provisions contained in clause 55 of the contract.
4. In view of the serious apprehension of project director that petitioner may not complete the project after getting the amount in question could be met be deemed fit and proper in accordance with contract agreement. The paramount consideration would however, be the satisfaction of project director. In this regard reference can be made to clause 45 of the contract agreement.
5. The requisite certificate for the work done which is not disputed shall be issued without further loss of time.
6. The bid price package no. I&2 shall remain within the agreed limit of Rs.61433439.58 and Rs.55455399.36 respectively and it shall have no bearing on the extra work done by the

petitioner with the mutual consent of the respondents but total price shall not cross the limits of Rs. 1 16888838.94 (excluding extra work).” It was further held the Court would not enter into, “controversial realm till the remedies provided in the agreement are exhausted. A mechanism and methodology has been provided for resolving disputes which must be followed irrespective of the fact as to whether the same are time consuming or otherwise.” Quetta. - 62,63,6465/A Contract Act, - Section 171 - Difference between banker’s right of lien and set off and the circumstances in which bank can claim such right and against whom:- Contract between the bank and its customer is a contract between a debtor and a creditor.....Bank can exercise right of set off only when the money owed by it is a sum certain and whether there is no agreement, expressed or implied, to the contrary. The banker should, therefore, always be guided by his knowledge of circumstances. Pecuniary obligation arising out of the contract by a deceased party will bind his legal representative to the extent of the estate of the deceased coming to his hands. Quetta. - 251,252/A Contract of Sale or Ijrah of a Commodity - Such contract shall only be valid where the commodity is in existence where goods do not exist, Islam does not recognize such agreement. Agreement to waive an illegality is void. Agreement with bank on the basis of which amount is payable by the customer does not fulfil the requirement of sale.

Control of Narcotics Substance Act [XXV of 1997] section 25:- Section 25 - Provisions of section 103 have no application to the Narcotic cases- Held - The provisions or section 103 G.P.C. have no application to the narcotic cases as per provisions contained u/s 25 of the Control of Narcotics substances Act 1997. Quetta.-15/A Control of Narcotics Substances Act [XXV of 1997] section 29 - Appellant failed to discharge burden u/s section 29- Appeal without merit.

Quetta.-16/B Criminal trial:- The prosecution evidence did not inspire confidence as there were contradictions and improvements in the statements of the witnesses - recovery witnesses did not support the crime weapon which was not sent to be expert for examination. The finding of the trial Court was based on surmises and conjectures being not based on any valid evidence. The conviction and sentence was set aside by giving the benefit of doubt to the convicts.

Quetta.-179/A Criminal trial - Motive:- Weakness of motive or its absence is wholly immaterial and would not be fatal to the case of prosecution if otherwise it is proved through ocular evidence. Sibi. - 195/A Delay in sending crime weapons to the Expert - of no consequence:- Mere delay of sending crime weapons to the Expert for examination is of no consequence. Even it is not alleged that the Kalashinkove and Shot-gun have been replaced or substituted by the Investigating Officer. Here delay in not sealing the Parcel after examination and opinion of Fire Arm Expert, not fatal to the case of prosecution and is of no legal consequence.

Sibi. - 196/C Evidence - The letter demanding ransom though not proved, provided clue for unfolding the case of prosecution. Quetta.-25/B Extra Judicial Confession. - Very weak type of evidence. On the basis of such evidence the conviction can not be awarded unless the same is corroborated with strong piece of evidence. Quetta.-26/CC Family Honour (Ghairat) - Not a mitigating circumstance:- Nobody has any right nor can any body be allowed to take law in his own hand in the name of ‘Ghairat’. Sibi. - 238/E Findings of Trial Court based on moral conviction and not on valid evidence - held not sustainable:- Both the recovery witnesses had not supported the recovery of crime weapon and the same was neither sent to chemical examiner nor produced in court as case property but was considered as corroborative piece of evidence by the trial court. Such conclusion, based on surmise and conjecture - the finding of the trial court not based on any valid evidence and moral conviction by a judge about guilt of accused could not form the basis of his conviction.

Sibi. -119/B v First Information Report - Requirements:- Under section 5 of the FIR Act, 1974, any officer of the FIA below the rank of sub- inspector can exercise any power of an officer in

charge of a police station, for the purpose of inquiry of investigation under the said Act. The powers of the officer in charge of a police station are laid down in Chapter XIV of Code of Criminal Procedure 1898.

Under section 154 of that Code, every information relating to the commission of a cognizable offence if given orally to an officer shall be reduced in writing as an FIR and then further proceedings of investigation are to be taken up as laid down in the sections that are to follow in that chapter in the Code. - Admittedly neither the (I.O) nor his supiKor officers had received any complaint before starting the enquiry against the accused.

Grant of local certificate declined in violation of principles of natural justice - impugned order set aside:- Held, - "It was obligatory on the part of petitioner or her husband to place necessary material before the learned Deputy Commissioner/Committee to prove that he is a genuine resident of the area but simultaneously it cannot be ignored that enquiry was conducted behind the back of petitioner and without providing an opportunity of hearing to her/him. In the circumstances we feel appropriate to set aside the impugned order passed by learned Deputy Commissioner and petitioner is at liberty to appear before the learned Deputy Commissioner and/or Committee constituted for the purpose and establish that her husband is a genuine and bonafide resident of the area." We may add that issuance of local certificate in favour of her husband is definitely an evidence but by itself is not conclusive in view of position taken by the Deputy Commissioner. " Quetta. - 221/C Honour killing:- Contention that the crime (double murder) has not only sanction of Islam and Law but on account of customary 'Ghairat' as well-----repelled-----held - this thinking is not only most unfortunate but also demonstrates lack of knowledge. Such crimes encourage cold blooded double murder in the garb of honour killing and violence against women. - Obligations of the society to give due rights to women and duty of the Investigation Agency to discover truth - discussed Sibi.-231,232/B Identification of accused during dark night:- The incident admittedly took place during dark night. From the distance and the manner disclosed by the PWs in their delayed, contradictory and improved statements - identification was neither possible nor confidence inspiring.

Sibi. - II8,119/A Illegal orders of superior - not to be followed:- Heads of the Departments are not to follow the illegal orders, issued by the Ministers or any other Authority, while making appointments. Quetta. - 90/D Interpretation of Statutes:- If a statute requires a thing to be done in a particular way, it must be done by the authority in the manner as prescribed by the statute, else departure from the Rules, will in validate the thing done in the manner other than prescribed by Rules. Quetta. - 88/B Litigation and Public Interest - I itigation being time consuming process, it was held, surely the public interest at large and student community would sustain substantial damage. Quetta. - 65/B Local Certificate and Domicile Certificate - issuance and cancellation of:- Local certificate is issued to a person, who belongs to one of the indigenous tribes of Balochistan and permanently residing in a particular area. As against this. Domicile certificates are issued to those, who do not belong to indigenous tribes of Balochistan but otherwise permanently residing in Balochistan (commonly known as 'Settlers') In case of issuance of domicile certificate strictly in terms of Pakistan Citizenship Act, no doubt District Magistrate himself is competent to do so as delegatee of Central Government but since domicile certificates are being issued for the purpose of admission in the professional colleges of Balochistan or gains attached to it such as, residence or for the purposes herein-before mentioned, therefore, in order to regulate issuance of such certificates, local certificate committee and domicile certificate committee have been constituted or some set procedure is being followed and the same are being issued on their recommendation, no departure can be made, particularly when criteria and purpose for grant of two Certificates are entirely different. Also that in the former case, it cannot be cancelled except in the manner provided by the law but in later case after providing opportunity of hearing or/and probe into the matter, same can be recalled. Quetta. - 162/D Local Certificate - issuance of:-

Local Certificate Committee has been constituted in every district to make recommendations for the issuance of Local Certificate. The issuance of Local Certificate is not regulated by any law/rules/regulation on the point but a person in view of the exigencies and the complexities of the present day life, may require it for example to obtain a seat in professional Colleges reserved for the area or for employment, therefore, it appears that in order to regulate the issuance of Local Certificate, a Committee has been constituted to give recommendations for issuance of Local Certificate to those who are genuine residents of the area.

Quetta. - 161/A Matters at interlocutory stage should not be brought to the High Court:-

Contention that case pending at interlocutory stage, should not be brought to the High Court as it curtails the remedies available under the law - upheld. Quetta. - 274,275/B Motive - Satisfactory motive plays an important part depending entirely on circumstantial evidence. Inadequacy or weakness of motive could not help the accused when direct evidence was available. Quetta-26/D Pakistan Citizenship Act 1951 - issuance of domicile certificate:- Though the domicile certificates are issued under the Pakistan Citizenship Act 1951, yet it appears from practice that such certificates are being used for the purpose of admission in professional colleges in Balochistan and to get employment against reserved seats for the district/province or any other like purpose.

.Quetta. - 161/B Pakistan Citizenship Act r/w rule-23:- Provisions of Pakistan Citizenship Act, read with Rules reveal that issuance of domicile certificate in favour of a person means that he is domicile of Pakistan and not the domicile of a particular district. Factually a certificate issued under Section-17 of the Act, r/w rule-23, cannot have any other purpose as the said section provides that the Central Government may upon an application being made to it in the prescribed manner containing the prescribed particulars grant a certificate of domicile to any person in respect of whom it is satisfied that he has ordinarily resided in Pakistan for a period of not less than one year immediately before submitting the application and has acquired domicile therein.

Quetta. - 161/C Pakistan Penal Code (Act XLV of 1860) Section 302 (a) and 304 PPC - Qatl-i-Amd:- Appellant convicted u/s 302 (a) PPC and sentenced to death - Qisasheld - trial Court seriously erred in recording conviction under section 302(a) Cr.P.C. as proof not available in either forms specified in section 304 PPC. -.....Conviction altered to maximum sentence of R.I for 20 years under section 302 (c) PPC and payment of Diyat also ordered Sibi. - 234/D Principles of Code of Criminal Procedure - Applicability:- Discussed Sibi.-201,202/E Process of making appointments should be transparent:- It has been invariably noticed that many appointments in the past have been made in violation of the Rules, on extraneous consideration. Thus, the Government Departments, should make all appointments, strictly in accordance with the Rules to make the process of appointment transparent, so that there should not be any heart burning and ill-will amongst the public servants and other contestants. Quetta. - 90/C Qanoon-e-Shahadat (Act X of 1984) - Art.71 - Consistent testimony to be believed:- Ocular testimony furnished by two traffic constables who were on duty, being consistent with the circumstantial evidence - held rightly believed by the trial court. Since the appellant had the knowledge that his act or omission was so imminently dangerous that it must in all probability cause death, therefore, it was further held, "where an accused to give cover to his illegal act omits to perform his duty and commits another illegal act and thereby caused death of a person, he would be guilty of murder. Question of knowledge is essentially a question of fact, to be decided purely upon the particular facts and circumstances of a case".

Quetta. - 135/A Recoveries - Made on the pointation of the appellant - support the prosecution case as corroborative piece of evidence.

Quetta.-25/C Reserved seats - object of:- The object of reserved seats for various districts in professional colleges appears to give legal protection to the student of backward area in order to bring them at par with the developed area of the country. This departure from merits has a constitutional protection in case of educational institutions financed by the Government. Quetta. -

165/H Sentence - Modification u/s 561-A Cr.P.C:- High Court has got inherent power to modify the sentence awarded to accused in exercise of powers under Section 561-A Cr. P. C. but not to enhance the sentence. The inherent powers are not supposed to be exercised to over ride express provisions of law.....Further held. Section 561-A Cr. P. C. cannot be invoked and added where there are express provisions dealing with a particular subject or can be used to defeat the express intention of legislature. In the case in hand Revisional powers under Section 439 Cr. P. C. in view of Section 7(1) Aci of 1975 was specifically excluded "no court shall have authority to revise such sentence or order to acquittal as the case may be". Sibi.

- 202/F Suppression of evidence by the heirs of the deceased and blame on judges for acquittal:- Every near and dear of deceased suppress evidence and deposes falsely and when accused earns acquittal, people blame Judges and forget that their hands are tied and they decide on papers. It is a high time that people must wake up from slumber and made Jihad for speaking the truth as we have already entered in the twenty first century "with the pride of 'Honour Killing'." We need a more tolerant society and everybody should play his role. ' Sibi. - 234/C Suppression of Terrorist Activities Act (XV of 1975) Sec. 5-A(7) - Principle of Natural Justice:- Petitioner on coming to know' that he was sentenced to death in absentia, submitted application within 60 days of STA Act 1975 supported by affidavit for setting aside his sentence and also prayed for trial on merits. His application was rejected on the ground that after due proclamation a counsel was appointed for the absconding accused and his three brothers who faced the trial and were acquitted. Therefore his plea of having no knowledge of the trial had no substance-----Contention that the contents of affidavit of the accused were not given due consideration and he was condemned unheard - upheld. It was held since petitioner surrendered himself within the prescribed period of 60 days therefore court was bound to apply his mind on the facts made in the application with care and caution whether narrated facts could be reasonable and plausible, the slightest favourable conclusion arrived at must be extended towards petitioner who threw himself at the mercy of court. It is golden principle of law one should not be condemned unheard. For fair and equal dispensation of justice, courts always appreciate and encourage decision of the cases on merits after providing opportunity of hearing to the parties for fair play and just conclusion.

The application .so filed before the trial court wherein plea taken in the application for his non-appearance before the court seems to be believable even death sentence awarded by the trial court would be un-natural to be executed without giving opportunity of hearing to the petitioner or without knowing the real facts and defence plea from the mouth of convict. The findings of the trial court that the requirements of law has been fulfilled regarding proclamation and appointment of a counsel for absconder on state expenses was no ground for refusal and dismissal of application. Quetta. - 152/A Trade Registration Ordinance. 1961:- Petitioners challenged notifications fixing the rates of broiler Hen/Chicken on the ground that such fixation was unjust discriminatory and without lawful authority. The respondents contended that the notification was issued in the public interest after meeting of the District Price Committee. The contention of the petitioners was repelled. It was held that there must be check and balance in order to prevent unjustified enhancement in the price of daily use items More over the District Magistrate had the authority to fix the rate of unscheduled items. Quetta. - 77/A

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